Tentative Rulings for August 21, 2026
Department 6

To request oral argument, you must notify Judicial Secretary Crystal Marias at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 830 3643

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVMV2605685	HAWKINS vs RIVERSIDE COUNTY OFFICE OF EDUCATION, A PUBLIC ENTITY	HEARING ON PETITION FOR RELIEF PURSUANT TO GOVERNMENT CODE 946.6

Tentative Ruling:

Moving party: Petitioner Luquanda N. Hawkins
Responding party: Respondent Riverside County Office of Education

Petitioner Luquanda N. Hawkins ("Petitioner") alleges that Riverside County Office of Education ("RCOE") employed her as a principal of a learning center beginning 8/1/22. Petitioner alleges that she was repeatedly exposed to dangerous conditions involving violent students, physical assaults, weapons, drugs, and life-threatening situations. She went on medical leave on 8/1/25 for emotional and psychological distress. She allegedly submitted a formal complaint to Defendant's HR department on 8/5/25, presented a claim to the County of Riverside on 2/27/26, and learned by 3/9/26 that RCOE was a separate public entity. Petitioner then submitted a late-claim application to RCOE on 3/17/26. RCOE did not respond to the application within 45 days.

The attached 3/17/26 claim identifies 5 causes of action: (1) intentional infliction of emotional distress; (2) negligence; (3) negligent supervision; (4) dangerous condition of public property; and (5) violation of public duty (based on unspecified Labor Code and other occupational safety provisions). (Exhibit C to the Petition.) Petitioner has also separately filed a complaint on 5/21/26, asserting 9 FEHA causes of action and an intentional infliction of emotion distress claim. (See Case no. CVRI 2603059.)

Now, Petitioner asks for an order relieving her from the claim presentation requirements.

She argues that her failure to present a claim to RCOE within 6 months resulted from excusable neglect and, alternatively, mental incapacity. She asserts that she diligently pursued administrative remedies (attending an EEOC appointment and filing complaints with state/federal agencies), mistakenly believed that those administrative filings satisfied all procedural requirements, and that she later presented her claim to the County. She also asserts that RCOE has actual notice of the underlying events, and that RCOE cannot demonstrate prejudice.

In opposition, RCOE argues that Petitioner and her counsel failed to exercise reasonable diligence. RCOE asserts that Petitioner should have known the identity of her employer for the past 3 years and counsel could have researched the identity of the entity. RCOE contends that Petitioner's anxiety and depression did not establish statutory mental incapacity, and allowing additional late claims would prejudice RCOE.

In reply, Petitioner argues that she retained counsel only after the 6-month period had already expired. She argues that she promptly pursued the claim process and corrected the entity mistake after retaining counsel. She further argues that RCOE identifies no lost evidence or impaired defense. Petitioner also objects that RCOE filed its opposition under the civil action's case number (CVRI 2603059) rather than the petition's case number (CVMV 2605685).

On 7/28/26, the court found Respondent's opposition (filed under a different case number) untimely but exercised discretion to consider the late opposition and allowed Petitioner to file a reply.

<u>Analysis</u>

At the heart of this Petition is whether Petitioner's failure to present a timely claim to the correct entity constitutes "excusable neglect" under Government Code section 946.6.

The Government Claims Act (Gov. Code, § 810 et seq.) requires that any claim for money or damages against a public entity be presented to that entity within six months of the accrual of the cause of action as a prerequisite to filing a lawsuit. (Gov. Code, §§ 911.2(a), 945.4.) If a timely claim is not filed, the claimant may, within one year of the accrual of the cause of action, apply to the public entity for leave to present a late claim. (Gov. Code, § 911.4.) If the entity denies that application, the claimant has six months to petition the court for an order relieving them from the claim presentation requirement. (Gov. Code, § 946.6(b).)

The court *shall* grant relief under section 946.6 if it finds that: (1) the application to the entity was made within a reasonable time not to exceed one year, and that (2) the failure to present a timely claim was due to "mistake, inadvertence, surprise, or excusable neglect." (Gov. Code, § 946.6(c)(1).) The petitioner bears the burden of establishing these prerequisites by a preponderance of the evidence. (*Rodriguez v. County of Los Angeles* (1985) 171 Cal.App.3d 171, 175.) The showing required is the same as that for relief from default under Code of Civil Procedure section 473. (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435.)

To show mistake or excusable neglect by a preponderance of the evidence, "[a] petitioner or counsel for a petitioner must show more than the mere failure to discover a fact until too late; he or she must establish the failure to discover that fact in the use of reasonable diligence." (*Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1783.) Excusable neglect is also that "neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances." (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435.)

Here, Petitioner filed her late-claim application within one year and promptly after the County identified the correct entity. Here, the petition alleges that Petitioner was placed on medical leave effective 8/1/25 and describes continuing conduct through 8/1/25. Using 8/1/25 as the accrual date, Petitioner filed her late-claim application within one year of accrual.

But the entity mistake does not explain her failure to act within the *original* 6-month period. Petitioner, in her petition, admits that she first presented a government claim to the County on 2/27/26, "approximately one week *after* the six-month deadline." (Petition, p. 7, emphasis added.) Petitioner relies on *Bettencourt v. Los Rios Community College Dist*. (1986) 42 Cal.3d 270 to argue that her mistake "is precisely the kind of mistake that constitutes excusable neglect." (*Id*., p. 9.) However, *Bettencourt* is distinguishable. There, counsel investigated promptly and presented a claim to the wrong public entity within the *original* claim period. (*Bettencourt v. Los Rios Community College Dist*., *supra*, 42 Cal.3d at 273-75.) In Bettencourt, counsel first presented a claim with the State Board of Control within the then-applicable 100-day period, but named the wrong public entity. (Bettencourt v. Los Rios Community College Dist., supra, 42 Cal.3d at 273-75.)

Petitioner's pursuit of EEOC and other state/federal administrative remedies show that she pursued her discrimination allegations. However, the evidence does not show that she sought advice concerning a government tort claim during the 6-month period. The records also present no information that might reasonably cause Petitioner to believe that an EEOC filing satisfied the requirements of the Government Claims Act. Mere lack of knowledge of the claim presentation requirement is insufficient to support relief under Gov. Code § 946.6 and does not establish excusable neglect. (*Garcia v. Los Angeles Unified School Dist*. (1985) 173 Cal.App.3d 701, 708.)

Petitioner also fails to show mental incapacity under Gov. Code § 946.6(c)(4). The record suggests some psychological diagnoses and medical leave, but it does not show incapacity throughout the claim period. Nor does it make sufficient showing that the disability prevented her from presenting a claim. Petitioner's ability to file other administrative complaints during that period also weighs against her incapacity arguments.

Since Petitioner has not first established mistake, excusable neglect, or incapacity, the court denies the petition. The court need not reach Respondent's arguments regarding prejudice.

Claims brought under California's Fair Employment and Housing Act ("FEHA") (Gov. Code, § 12900 et seq.) are not subject to the claim presentation requirements of the Government Claims Act. (*Garcia v. Los Angeles Unified School Dist*. (1985) 173 Cal.App.3d 701 ["Actions brought under the Fair Employment and Housing Act (FEHA) … have also been held exempt from the claim-presentation requirements of the general tort claims act.") FEHA has its own statutory scheme for employment discrimination claims. (*Id*. at 710.) Therefore, to the extent that Petitioner pursues FEHA claims, Petitioner needs no section 946.6 relief for those.

Summary

Deny the petition as to the 5 causes of action identified in the 3/17/26 claim because Petitioner has not established excusable neglect or qualifying incapacity. Any independently pled FEHA causes of action do not require section 946.6 relief.

Case dismissed.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2408331	GUERRERO VELAZQUEZ vs PRITCHARD SPORTS & ENTERTAINMENT GROUP, LLC,	MOTION TO COMPEL PLAINTIFF TO APPEAR FOR DEPOSITION AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling:

Moving party: Defendants Pritchard Sports & Entertainment Group, LLC; Samuel Salinas; and Lisa Avalos

Responding party: Plaintiff Aurora Guerrero Velazquez

This is a Fair Employment and Housing Act ("FEHA") and wage and hour matter. Aurora Guerrero Velazquez ("Plaintiff") was hired by Pritchard Sports & Entertainment Group, LLC ("Pritchard") as a custodian. While at work, on two separate occasions, Plaintiff fainted and hit her head. She had to take short medical leave of absences due to these incidents. She contends that she was harassed by her supervisor Lisa Avalos ("Avalos") for taking leave. She alleges that she was retaliated against for taking leave and was required to work outside in over 90-degree weather. While working in these conditions, Avalos belittled and harassed her. She was unable to cope with the harassment and dangerous working conditions and left work early. The next day, her manager Samuel Salinas ("Salinas"), attempted to pressure her to sign a disciplinary warning for leaving work early. When she attempted to tell Salinas about the harassment, she was terminated.

The complaint asserts the following causes of action: (1) discrimination; (2) harassment; (3) retaliation; (4) failure to prevent discrimination, harassment, and retaliation; (5) failure to provide reasonable accommodations; (6) failure to engage in a good faith interactive process; (7) declaratory relief; (8) wrongful termination in violation of public policy; (9) violation of the Ralph Civil Rights Act; (10) violation of the Tom Bane Civil Rights Act; (11) negligent supervision and retention; (12) failure to pay wages; (13) failure to provide meal and rest periods; (14) failure to provide itemized wage and hour statements; (15) waiting time penalties; and (16) unfair competition.

Pritchard, Avalos, and Salinas bring this motion seeking to compel Plaintiffs' deposition. They contend that Plaintiff has failed to appear at two properly noted and agreed upon depositions. They seek sanctions in the amount of $18,373. No memorandum of points and authorities has been filed with this motion.

In opposition, Plaintiffs contend that she could not appear for her depositions due to medical emergencies. She asserts that she does not oppose the request compelling her deposition (she is not refusing to attend deposition), but asks that she have 15 days from the issuance of the court's order to complete her deposition. She also asserts that sanctions are not warranted because her failure to appear at her depositions were due to unforeseen medical circumstances.

In reply, Defendants assert this motion should be granted. They contend that Plaintiff has failed to provide any evidence to support her assertion that her failure to appear was due to unforeseen medical circumstances.

Analysis

While the notice indicates a memorandum of points and authorities was to be filed with this motion. No points and authorities were filed with the motion on 7/2/2026, however after notice from the Court, movant filed points and authorities on 8/19/2026. California Rules of Court, rule 3.1112(a)(3) requires that a memorandum of points and authorities be filed in support of a motion.

Service of a proper deposition notice is sufficient to compel a party or the employee of a party to appear, testify, and produce records in their possession without a subpoena. (CCP §2025.280(a).) If a party deponent fails to appear or produce documents, without having serviced a valid objection under CCP § 2025.410, the party giving the notice may move for an order compelling the deponent's attendance, testimony, and production of documents. (CCP § 2025.450(a).) Such a motion must be accompanied by a meet and confer declaration under CCP § 2016.040, or when the deponent failed to attend the deposition, a declaration stating that the moving party contacted the deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) "Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue." (*Lelo v Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th 1109, 1124.)

Plaintiff failed to appear at two noticed depositions. The first one was canceled the morning of the deposition, based on the assertion that Plaintiff was having a medical emergency. There is a dispute over whether Defendants' counsel was notified before the second deposition that Plaintiff was again having a medical emergency and was unable to appear. Based on Plaintiff's counsel's declaration, she provides that on the morning of the second deposition, she was "informed that Plaintiff was experiencing an unforeseen medical emergency and would be unable to participate in her remote deposition that day. I promptly communicated this information to Defendants' counsel." (Declaration of Samantha Ortiz, ¶ 5.) However, in Defendants' counsel's declaration and the certificate of non-appearance, counsel in attendance to represent Plaintiff (which was not the same individual who provided the declaration in opposition) attempted several times after Plaintiff failed to appear to contact her but could not reach her. (Declaration of Athalia I. Magana, ¶ 15 and Exhibit 9, 3:9-11.) Based on the evidence provided by Defendants, it was not clear at the time Plaintiff's certificate of non-appearance was taken that she was having another medical emergency. Defendants' counsel has provided evidence that counsel reached out to inquire about the nonappearance several times. Counsel spoke at the deposition, which is reflected by the certificate of non-appearance and counsel followed up in emails about alternative deposition dates. (Declaration of Athalia I. Magana, ¶¶ 15-17 and Exhibit 9.)

Plaintiff does not oppose the granting of the request to compel her to deposition. She asks that she be given 15 days from the Court's order to have her deposition completed. In reply, Defendants agree to this request. As such, **the motion is granted as to the request to compel Plaintiff to deposition, and the deposition is ordered to be completed within 15 days of the Court's order.**

Plaintiff does oppose the request for sanctions. Under CCP § 2025.450(g)(1), if a motion to compel a deposition is granted the court must impose sanctions unless doing so is unjust or the opposing party acted with substantial justification. Under California Rules of Court, rule 3.1348, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." Plaintiff argues that imposing sanctions would be unjust because her failure to appear was due to unforeseen medical issues. However, Plaintiff fails to provide any evidence to establish that she had unforeseen medical issues. No declaration has been provided by Plaintiff. Due to this failure sanctions are awarded.

The $18,373 sought by Defendants is excessive. Since it appears that Defendant's counsel and the attorney representing Plaintiff were not aware before the second deposition started that she would not be appearing, the **Court awards the entire $1,395 in costs incurred** for the second deposition, including the fee for taking the certificate of non-appearance.

Since Defendant's counsel was aware that Plaintiff would not appear for her first noticed deposition before the deposition occurred, the $450 in costs for a certificate of non-appearance was not necessary. As such, the Court reduces the $1,840 in fees sought for Plaintiff's failure to appear for this deposition to $1,390.

Defendants' counsel seeks to recoup fees for 21 hours spent on preparing for the deposition and discussing this matter with Plaintiff's counsel. These are things that Defendants' counsel was required to do anyways. The Court will not pass these expenses on to Plaintiff. Doing so would be unfair. Defendants' counsel asserts that she will spend 8 hours on this motion. This amount appears high for such a straightforward motion.

Therefore, **the Court awards $4,185** in sanctions ($1,390 for the fees for the first deposition + $1,395 for the fees for the second deposition + $1,400 ($350 an hour x 4 hours) in fees for preparing this motion). Sanctions are payable within 15 days of this order.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2306200	BAGHINYAN vs FCA US, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Moving party: Plaintiffs Karen Baghinyan and NB Auto Group
Represented by Wirtz Law APC and Norman Taylor & Associates
Responding party: Defendant FCA US LLC
Represented by Clark Hill LLP

This is a lemon law action. On September 10, 2021, Plaintiffs Karen Bahinyan and NB Auto Group purchased a 2021 Dodge Durango (the "Subject Vehicle") sold with express warranties from Defendant FCA US LLC (or "FCA"). The Complaint, filed November 17, 2023, alleges causes of action for (1) breach of express warranty and (2) breach of implied warranty.

On July 29, 2025, Plaintiffs filed a notice of conditional settlement of entire case. Plaintiffs accepted FCA's 998 Offer (the "Offer") on July 28, 2025.

Plaintiffs were represented by two firms – Norman Taylor & Associates ("NTA") and Wirtz Law ("WL"). Plaintiffs now move for an award of attorneys' fees in the amount of $70,539.75 (lodestar amount $47,026.50 and multiplier of 1.5). NTA incurred $13,010.62 in fees and WL incurred $35,080.00 in fees. Plaintiffs maintain that they filed a memorandum of costs on November 17, 2025. Plaintiffs maintain they are the prevailing party and the fees are reasonable.

In opposition, FCA argues Plaintiffs' motion is untimely under *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644. FCA does not dispute Plaintiffs are entitled to reasonably incurred attorneys' fees but that the requested attorneys' fees here are unreasonable given the straightforward and routine nature of the case.

In reply, Plaintiffs argue the motion is timely, and FCA provides no relevant evidence to demonstrate the requested fees are unreasonable or unnecessary. Plaintiffs generally repeat their arguments set forth in moving papers.

<u>**Analysis**</u>

I. Evidentiary Objections

The Court **SUSTAINS** Plaintiffs' objection to Exhibit C attached to the Declaration of Alexis C. Santana as irrelevant.

II. Standard of Law

Under Civil Code section 1794, subdivision (d), "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." The federal Magnuson-Moss Warranty Act contains a similar fee-shifting provision. (15 U.S.C. § 2310, subd. (d)(2).)

III. Merits

A. Timeliness

A motion for fees incurred up to the time of judgment in the trial court "must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case." (Cal. Rules of Court, rule 3.1702(b)(1).) The time for filing a notice of appeal is the earlier of 60 days after service of notice of entry of judgment or 180 days after entry of judgment. (*Id.,* rule 8.104(a)(1).) The clock starts to run on the time to move for attorney fees from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock). (*Hatlevig, supra,* 118 Cal.App.5th at 649.)

In *Hatlevig,* the plaintiff's counsel notified the court of the settlement on June 2, 2023, and on July 11, 2023, the clerk generated a "Notice of Dismissal by Court" stating the case would be deemed dismissed without prejudice on August 15, 2023. (*Hatlevig, supra,* 118 Cal.App.5th at 646-647.) On April 4, 2024, the plaintiff served its motion for attorney fees on the manufacturer. (*Id.* at 647.) On April 26, 2024, the trial court held that because the case was dismissed on August 15, 2023, plaintiff's motion was untimely even giving him the benefit of the full 180 days after August 15, 2023. (*Id.*) On June 17, 2024, the trial court signed a minute order that dismissed the operative complaint. (*Id.*) The Court of Appeal held, "[W]hen a case settles the plaintiff '*must* serve and file a request for dismissal of the entire case within 45 days.'" (*Id.* at 649, citing Cal. Rules of Court, rule 3.1385(b), italic included.) "If the plaintiff does not do so, 'the court *must* dismiss the case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed.'" (*Ibid.,* italics included.) The Court of Appeal held August 15, 2023 was the date of dismissal for purposes of starting the clock running on the time that plaintiff had to move for attorney fees, and the June 17, 2024 dismissal order was a nunc pro tunc correction of the failure by the trial court to file a dismissal order on August 15, 2023. (*Id.* at 650.)

Here, Plaintiff filed a Notice of Settlement on July 29, 2025. On March 12, 2026, the Court dismissed without prejudice because no timely declaration was received pursuant to Local Rule 3116. On June 8, 2026, the Court granted Plaintiffs' motion to set side dismissal and retained jurisdiction to enforce the settlement under Code of Civil Procedure section 664.6. Notice of Entry of Judgment was filed on June 10, 2026. Plaintiffs filed the instant motion on June 17, 2026.

The clock starts to run on the time to move for attorney fees from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock). (*Hatlevig, supra,* 118 Cal.App.5th at 649.) Applying *Hatlevig*, the motion is **TIMELY**.

B. Lodestar

The parties do not dispute that Plaintiffs are entitled to reasonable attorney fees and costs.

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller.) (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra,* 167 Cal.App.4th 1379, 1394; see also *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra,* 22 Cal.4th at 1095.)

NTA claims the following:

Staff	**Hourly Rate**	**Hours**	**TOTAL**
Norman F. Taylor (NFT), attorney	$645	16.70	$10,771.50
Nick McNaughton (NMC), paralegal	$250	2.9	$725.00
Lusine Musat ("LM"), paralegal	$250	7.2	$1,800.00
Lori Richardson ("LR"), paralegal	$250	0	$
TOTAL			**$13,296.50**

WL claims the following[1]:

Staff	Hourly Rate	Hours	TOTAL
Amy R. Rotman (ARR), senior attorney	$600	6.8	$4,080.00
Jessica R. Underwood (JRU), senior attorney	$600	24.1	$14,460
Safia Bootwala (SHB), attorney	$450	1.3	$585
Kyle B. Sample (KBS), attorney	$450	26.4	$11,880
Rebecca Evans (REE), paralegal	$300	5.5	$1650
Dalia Zaki (DZ), paralegal	$250	0.4	$100
Kaitlyn Dols (KD), paralegal	$250	9.3	$2,325
TOTAL		73.8	**$35,080**

i. Reasonable Hourly Rate

The hourly rates do not appear to be reasonable for Riverside County. Plaintiff provides no evidence that they could not secure a local attorney and as such, the out-of-town attorney's home market rate should not be applied. (*Caldera v. Department of Corrections & Rehabilitation* (2020) 48 Cal.App.5th 601, 609.) A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, supra,* 22 Cal.4th at 1095.) Thus, the Court reduces the hourly rates as follows: $500/hour for partners and senior counsel, $400/hour for associates, and $150/hour for law clerks/paralegals.

ii. Reasonable Hours

The starting point for every fee award is calculating an attorney's services by the time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.)

FCA challenges specific billing entries.

1. WL's Billed Time

<u>Motion to Compel</u>. FCA challenges the 8 hours billed by JRU and 8.1 hours billed by KBS to draft motions to compel discovery responses. FCA points out the Court previously awarded monetary sanctions for four discovery motions heard on July 14, 2025, and FCA satisfied those sanctions. FCA points out this is impermissible double recovery because Plaintiff has already been compensated for the work through the Court's sanctions award. **STRIKE** 8 hours from JRU billing and 8.1 hours from KBS billing.

[1] WL lists each time keeper and then the hours that are billed as well as the hours that were not billed. This table goes by the hours that were billed.

Anticipated Time. FCA challenges the 4.2 hours for anticipated attorney time for ARR and REE because the work has not occurred. **STRIKE** 0.7 from REE billing.

2. NTA Billed time

Templated Discovery Requests. FCA challenges the 5.1 hours billed by NFT for drafting boilerplate discovery requests. **STRIKE** 3 hours from NFT billing.

Based on a review of the billing records, the Court should make specific reductions to the hours claimed as follows:

For NTA:

Staff	Hourly Rate	Hours	TOTAL
Norman F. Taylor (NFT), attorney	$500	13.70	$6,850.00
Nick McNaughton (NMC), paralegal	$150	2.9	$435.00
Lusine Musat ("LM"), paralegal	$150	7.2	$1,080.00
Lori Richardson ("LR"), paralegal	$150	0	$0
TOTAL			**$8,365.00**

WL claims the following:

Staff	Hourly Rate	Hours	TOTAL
Amy R. Rotman (ARR), senior attorney	$500	6.8	$3,400.00
Jessica R. Underwood (JRU), senior attorney	$500	16.1	$8,050.00
Safia Bootwala (SHB), attorney	$400	1.3	$520.00
Kyle B. Sample (KBS), attorney	$400	18.3	$7,320.00
Rebecca Evans (REE), paralegal	$150	4.8	$720.00
Dalia Zaki (DZ), paralegal	$150	0.4	$60.00
Kaitlyn Dols (KD), paralegal	$150	9.3	$1,395.00
TOTAL			**$21,465.00**

iii. Multiplier

FCA also argues the case does not warrant a multiplier, or a negative multiplier should be applied, because there was no showing by Plaintiffs' counsel of any novelty or difficulty in this case, that litigation precluded other employment by the attorneys; and any contingent nature of the fee award, given the mandatory fee-shifting statute, and the near certainty of prevailing on the merits based on the Song Beverly Act.

The purpose of a fee enhancement is "primarily to compensate the attorney for prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) "Fair market value" typically includes a premium for the risk of nonpayment or delay in payment of attorney fees. (*Id.* at 1138.)

"The court then has the power and the duty to enhance, or to reduce, the lodestar through the use of multipliers, by taking into consideration factors such as the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery." (*Robbins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) Contrary to Plaintiffs' contention, this case is not novel or complex. It is a routine lemon law case. While counsel has extensive lemon law experience which may have contributed to the outcome, that experience is reflected in the high hourly rates, and further enhancement is not necessary. Although counsel worked on a contingency basis, because attorney's fees are mandatory under the Song Beverly Act, the risk that counsel would not recover for hours incurred was relatively low. Accordingly, the Court **DENIES** the multiplier.

iv. Costs

Plaintiffs assert they filed Memorandum of Costs on November 17, 2025 seeking a total of $6,578.47. (Wirtz Decl., ¶41.) However, such memorandum was not found on eCourt. The memorandum of costs is not listed as a rejected document in eCourt either.

A "prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) Moreover, California Rules of Court rule 3.1700(a)(1) provides, "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case."

Here, Notice of Entry of Judgment was filed on June 10, 2026. Although no memorandum of cost was found on eCourt, FCA does not dispute the $6,578.47 claimed by Plaintiffs. **Accordingly, the Court awards costs in the amount of $6,578.47.**

The Court awards the Plaintiffs as follows: **$8,365.00** in attorney's fees to NTA and **$21,465.00** in attorney's fees to WL. Fees cost payable within 30 days of this order.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2402988	QUINN vs NATIONS RECOVERY SERVICE, INC.	MOTION FOR NEW TRIAL

Tentative Ruling:

A trial court has broad discretion to rule on the new trial motion. (*Hartt v. County of Los Angeles, 197 Cal. App. 4th 1391, 1409, 132 Cal. Rptr. 3d 27 (2d Dist. 2011))* However, a new trial order can be granted only on a ground specified in the motion. (*Collins v. Sutter Memorial Hospital, 196 Cal. App. 4th 1, 16, 126 Cal. Rptr. 3d 193 (3d Dist. 2011))*

The court may grant a new trial when after an examination of the entire case, including the evidence, the court is of the opinion the error complained of has resulted in a miscarriage of justice. (Cal Const Art VI, § 13) When the judge presided over the trial, it is presumed he or she considered the entire case before ruling on the new trial motion. (See *Maher v. Saad, 82 Cal. App. 4th 1317, 1324, 99 Cal. Rptr. 2d 213 (3d Dist. 2000))*

Because the trial judge is familiar with the evidence, witnesses, and proceedings, he or she is in the best position to determine whether in view of all the circumstances, justice demands a retrial. (*Romero v. Riggs, 24 Cal. App. 4th 117, 121, 29 Cal. Rptr. 2d 219 (4th Dist. 1994))* Thus, the determination of a motion for a new trial rests within the trial court's discretion and will not be disturbed on appeal unless a manifest and unmistakable abuse of discretion clearly appears.

A statement of reasons is not required when the court denies a motion for new trial. (*Stevens v. Owens–Corning Fiberglas Corp., 49 Cal. App. 4th 1645, 1657, 57 Cal. Rptr. 2d 525 (1st Dist. 1996))*

Having presided over the trial and considered the entire case including all briefing on this motion for new trial the Court is of the opinion that no error complained of has resulted in a miscarriage of justice. Motion for new trial is denied.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2505390	MARTINEZ vs HERNANDEZ-VARGAS	MOTION TO CONTEST GOOD FAITH SETTLEMENT

Tentative Ruling:

Moving party: Defendant Waste Management Collection and Recycling, Inc. and Pablo Arroyo
Represented by: Bordin Semmer LLP

Responding party: Defendant Juan Pablo Hernandez-Vargas
Represented by: Law Offices of Scott C. Stratman

Plaintiff Julian Martinez ("Plaintiff") alleges that he was severely injured on 10/22/24, while he was a passenger in Defendant Juan Pablo Hernandez-Vargas's ("Vargas") vehicle, which collided with Defendant Pablo Arroyo ("Arroyo"), who was operating a commercial truck for Defendant Waste Management Collection and Recycling, Inc. ("WM").

Plaintiff filed this action on 9/30/25 alleging claims for motor vehicle and general negligence. On 11/4/25, WM and Arroyo filed a cross-complaint against Vargas for implied indemnity, contribution and indemnity and declaratory relief. On 3/3/26, Vargas filed a cross-complaint against WM and Arroyo for indemnification and apportionment of fault.

On 3/3/26 Plaintiff requested entry of Vargas' default on the complaint. On 5/19/26, the parties stipulated and the Court ordered the default to be set aside.

On 5/26/26, Vargas filed an application for determination of good faith settlement. Vargas states Plaintiff will dismiss him from the complaint with prejudice in exchange for a settlement amount of $250,000.

***

WM and Arroyo (collectively "WM Defendants") now move to contest good faith settlement. (C.C.P., § 877.6.) They argue the Application is procedurally defective as Vargas failed to provide proper statutory notice to them by serving at their counsel's old office address and they only learned of the application from the Court's June 17, 2026 minute order. They also argue the proposed settlement does not meet the "good faith" standard established *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488. They argue Vargas has not offered sufficient competent evidence to show the Court why $250,000 is a fair settlement in light of his potential liability as the primary, if not sole, tortfeasor in this matter, and Plaintiff's damages are significant and exceed what the proposed settlement could equitably resolve. Moreover, details of the settlement terms, and evidence of Vargas' financial condition are not included thereby failing to meet the *Tech-Bilt* standards.

Vargas opposes and argues the failure of his counsel to catch WM Defendants new address was inadvertent and unintentional and there is no prejudice to them as they filed the instant motion. Vargas argues the settlement should be approved as it meets the *Tech-Bilt* standard. The settlement is for his policy limits, and he has no other assets.

No timely reply was received.

Analysis

I. Service

The service issue argued by WM Defendants does not appear to prejudice them as they were able to timely file the instant motion. The Court will reach the merits.

II. Legal Standard

In a case involving two or more alleged joint tortfeasors, a party may seek a court order under C.C.P., § 877.6 determining that a settlement between the plaintiff and one or more of the alleged tortfeasors is in good faith. A judicial determination of good faith "bar[s] any other joint tortfeasor . . . from any further claims against the settling tortfeasor . . . for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (C.C.P., § 877.6(c).)

In evaluating whether a settlement has been made in good faith, courts consider the following factors as set forth in *Tech-Bilt*: (1) "a rough approximation of plaintiffs' total recovery"' (2) "the settlor's proportionate liability"; (3) "the amount paid in settlement"; (4) "the allocation of the settlement proceeds among plaintiffs"; (5) "a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial"; (6) the settling party's "financial conditions and insurance policy limits"; and (7) any evidence of "collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants." (*Id.* at 499.) "Practical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement." (*Id.*)

The "good faith" concept in section 877.6 is a flexible principle imposing on reviewing courts the obligation to guard against the numerous ways in which the interests of nonsettling defendants may be unfairly prejudiced. (*Rankin v. Curtis* (1986) 183 Cal.App.3d 939, 945.) Accordingly, under *Tech-Bilt*, the party asserting the lack of "good faith" may meet this burden by demonstrating that the settlement is so far "out of the ballpark" as to be inconsistent with the equitable objectives of the statute. (*Tech-Bilt*, *supra*, 38 Cal.3d at 499–500.) Such a demonstration would establish that the proposed settlement was not a "settlement made in good faith" within the terms of section 877.6. (*Id.*)

Section 877.6 is designed to further two equitable policies: (1) encouragement of settlements; and (2) equitable allocation of costs among joint tortfeasors. (*Id.*) Those policies would not be served by an approach which emphasizes one to the virtual exclusion of the other. (*Id.*) Accordingly, a settlement will not be found in good faith unless the amount is reasonable in light of the settling tortfeasor's proportionate share of liability. (*Std. Pac. of San Diego v. A. A. Baxter Corp.* (1986) 176 Cal.App.3d 577, 589.) A "defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be." (*Tech-Bilt*, *supra*, 38 Cal.3d at 499.)

When a motion seeking a determination under section 877.6 is not opposed, the burden on the moving parties to show that the settlement was made in good faith is slight. (*City of Grand Terrace v. Sup. Ct.* (1987) 192 Cal.App.3d 1251, 1261.) When a good faith motion is contested, however, the moving parties have the initial burden of producing evidence in support of the requested good faith determination. (*Id.* at 1261–62.) "Section 877.6 and *Tech-Bilt* require an evidentiary showing, through expert declarations or other means, that the proposed settlement is within the reasonable range permitted by the criterion of good faith." (*Mattco Forge v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1351.) "Substantial evidence" is required. (*Id.* at 1352.) A declaration from a settling defendant's attorney that states, in conclusory fashion, that the client has little or no share of the liability may not be sufficient. (*Greshko v. Cnty. of Los Angeles* (1987) 194 Cal.App.3d 822, 834–35; *see also* 3 Weil & Brown, Cal. Practice Guide: Civil Procedures Before Trial (The Rutter Group 2025) ¶¶ 12:774, 12:872–873.)

The ultimate burden of persuasion is on the party opposing the good faith determination. The "party asserting a lack of good faith shall have the burden of proof on that issue." (CCP § 877.6(d); *see also* 3 Weil & Brown, *supra*, at ¶ 12:875.)

III. Motion to Contest Application of Good Faith Settlement

Vargas has agreed to settle with Plaintiff, his passenger, for $250,000. (Applic., 2:14-15.) Vargas filed the Application seeking a determination that the settlement was entered in good faith. The application is supported by the declaration of defense counsel who only declares Plaintiff and Vargas participated in informal settlement negotiations, Vargas disputes liability but made an economic decision based on defense costs and no evidence of collusion or fraud exists. (Application, Garcia Decl., ¶¶ 2-4.)

To determine whether Vargas' settlement with Plaintiff is a good faith settlement under C.C.P., § 877.6, the Court must consider and weigh the factors set forth in *Tech-Bilt*, as discussed below:

<u>Rough approximation of Plaintiff's total recovery.</u> The Application fails to provide any evidence in support of this factor.

<u>The settlor's proportionate liability.</u> "The settling party's proportionate liability is one of the most important factors." (*Long Beach Memorial Med. Ctr. v. Sup. Ct.* (2009) 172 Cal.App.4th 865, 874 [internal citation omitted]].) There must be substantial, competent evidence of the settling party's proportionate liability before the court may grant a request for determination of good faith settlement in a contested case. (*Mattco Forge*, *supra*, 38 Cal.App.4th at 1351; *see also Tech-Bilt*, *supra*, 38 Cal.3d at 499.) Conclusory allegations as to the settling parties' liability are insufficient. (*Id.*)

Again, Vargas' Application fails to present any evidence in support of this factor. The declaration in support of the Application support states Vargas disputes liability. (Garcia Decl., ¶ 3.) The WM Defendants argue that not only did Vargas fail to present any evidence in support of this factor, but Vargas' $250,000 settlement is not within the reasonable range of his proportionate liability. According to the police report, the officer determined that Vargas caused this collision by driving at an unsafe speed in violation of the Vehicle Code. Vargas was traveling "at about 50 mph" when he struck Arroyo's truck, which had “activated his right turn signal as he drove past the intersection of Grove View Road” before “swung a little wide and began to turn right into the driveway.” The independent witness corroborated that Arroyo had his right turn signal on and swung a little wide before beginning his right turn into the driveway” and that he saw Vargas speeding northbound on Indian Street approaching the back of Arroyo. Vargas himself acknowledged that he didn’t realize Arroyo was making a right turn into the same driveway he was planning on turning into. Based on this fact, and given the absence of evidence, the proposed settlement is disproportionately low.

<u>The amount paid in settlement.</u> Vargas only states in the Application he has agreed to pay Plaintiff $250,000 in settlement. However, Vargas cannot simply provide the settlement amount, but must provide the Court with the “terms and provisions” of the settlement, as required by C.C.P., § 877.5(a)(1). They argue that the Court must be able to determine “what settlement or settlements took place and what parties agreed to what allocations.” (*Alcal Roofing & Insulation v. Sup. Ct.* (1992) 8 Cal.App.4th 1121, 1127.) CCP § 877.5(a)(1) provides: “Where an agreement or covenant is made which provides for a sliding scale recovery agreement between one or more, but not all, alleged defendant tortfeasor and the plaintiff . . . [t]he parties entering into any such agreement or covenant shall promptly inform the court in which the action is pending of the existence of the agreement or covenant and **its terms and provisions**.” (emphasis added.)

<u>The allocation of the settlement proceeds among plaintiffs.</u> As there is only one plaintiff, this factor does not apply.

<u>A recognition that a settlor should pay less in settlement than he would if he were found liable after a trial.</u> This factor weighs in favor of a good faith determination.

<u>The settling party’s financial conditions and insurance policy limits.</u> An exception to the proportionality requirement is that “a disproportionately low settlement figure is often reasonable” when the settling defendant is “relatively insolvent” and uninsured or underinsured. (*Tech-Bilt*, *supra*, 38 Cal.3d at 499; *see Schmid v. Sup. Ct.* (1988) 205 Cal.App.3d 1244, 1245–46.)

In opposition, Vargas’ counsel submits a declaration stating the Vargas vehicle was insured by Farmers Insurance Exchange with policy limits of $250,000.00 per person and $500,000.00 per occurrence. (Oppo., Garcia Decl., ¶ 3.) There is no evidence of Vargas’s financial condition.

Because a settling defendant’s financial condition is one of the *Tech-Bilt* factors, discovery into the settling defendant’s financial condition is subject to discovery by the nonsettling party in a contested motion for good faith settlement proceedings. (*City of Grand Terrace v. Sup. Ct.* (1987) 192 Cal.App.3d 1251, 1264–65.) A “‘disproportionately low’ settlement is a threshold requirement” for conducting discovery into settling defendant’s financial condition. (*L.C. Rudd & Son v. Sup. Ct.* (1997) 52 Cal.App.4th 742, 749.) Here, the WM Defendants have shown that the proposed settlement amount is disproportionately low, and that they have served written discovery on Vargas but he has not responded.

Evidence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants. Counsel for Vargas declares there was no collusion, fraud, or any other conduct aimed at injuring the interest of nonsettling parties. (Applic., Garcia Decl., ¶ 4.)

However, as WM Defendants argue, there are several procedural circumstances warrant consideration under the factor addressing the existence of collusion, fraud or tortious conduct aimed to injure the interests of the non-settling defendants. First, despite having served other documents on WM counsel electronically and having actual knowledge of WM counsel's current El Segundo address from documents served on him, Vargas served the application via mail to WM counsel's former Los Angeles address. Second, the application was filed after WM Defendants served written discovery but before Vargas was required to respond, which prevented WM Defendants from obtaining verified financial information before the settlement application was heard. Third, Plaintiff was a passenger with Vargas at the time of the accident. Finally, Plaintiff entered a default against Vargas on March 3, 2026 which was stipulated to be set aside on May 19, 2026 and the settlement application was filed two days later, on May 21, 2026. None of these circumstances alone establishes collusion. However, the cumulative effect of these circumstances, combined with the absence of documentary verification of the proportionate liability, Plaintiff's damages, asserted policy limits and financial condition, raises questions about the adequacy of the evidentiary showing.

Taking all of the *Tech-Bilt* factors into account, the Court finds that Vargas failed to make a sufficient showing of all the *Tech-Bilt* factors in his favor, and grants the WM Defendants motion to contest and deny Vargas' Application without prejudice.

Grant the motion to contest. Deny the application without prejudice.